



# CAPITAL PARTNER — DEED IN LIEU CONSENT & CONVEYANCE NOTICE

Two short pieces. The consent is required before you accept a deed; the notice goes out after it's recorded.

## 1. CONSENT TO ACCEPT DEED IN LIEU OF FORECLOSURE

**Deal:** {{DEAL\_REF}} · {{PROPERTY\_ADDRESS}}

**Date:** \_\_\_\_\_

Under **Section 5(b) of the Collateral Assignment of Note and Deed of Trust** recorded as Instrument No. {{CA\_INSTRUMENT\_NO}}, Lazy Dog Capital LLC may not accept a deed in lieu of foreclosure without the Capital Partner's prior written consent.

### WHAT WE'RE ASKING

The borrower has defaulted. Rather than foreclose, we want to accept a deed to the property in lieu of foreclosure. Our reasoning:

{{REASONING}}

### How this affects you

|                           |                      |
|---------------------------|----------------------|
| Your capital              | \${{CP_AMOUNT}}      |
| Return accrued and unpaid | \${{ACCRUED_UNPAID}} |
| Total owed to you         | \${{TOTAL_OWED_CP}}  |

**Your position continues unchanged.** The Deed of Trust lien is expressly preserved and does not merge into the fee title, so your Collateral Assignment remains in place and in first position. Your return continues to accrue at {{CP\_RATE}}%.

As provided in Section 5 of your Capital Partner Agreement, your capital and accrued return are repaid **from the proceeds when the property is sold** — ahead of any recovery by Lazy Dog Capital. Accepting a deed in lieu does not change that; it is simply a faster route to controlling and selling the property than foreclosure.

During this period, monthly payments stop and your return accrues, as provided in Section 5.2. You do not lose the return — it is paid in full out of the sale proceeds together with your principal.

### CONSENT

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I consent to Lazy Dog Capital LLC accepting a deed in lieu of foreclosure on the terms checked above.

Signature: \_\_\_\_\_ Date: \_\_\_\_\_

Printed name: \_\_\_\_\_

Title, if signing for an entity, trust, or custodian: \_\_\_\_\_

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*Return to Lazy Dog Capital LLC · 214-740-4989*

**Tokens:** {{DEAL\_REF}} · {{PROPERTY\_ADDRESS}} · {{CA\_INSTRUMENT\_NO}} ·  
{{REASONING}} · {{CP\_AMOUNT}} · {{ACCRUED\_UNPAID}} · {{TOTAL\_OWED\_CP}} ·  
{{CP\_RATE}}

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## 2. NOTICE OF COMPLETED CONVEYANCE

### LAZY DOG CAPITAL LLC

3400 N Central Expy #110-217, Richardson, TX 75080 · 214-740-4989

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{{LETTER\_DATE}}

{{CP\_PAYEE\_NAME}}

{{CP\_ADDRESS}}

**Re: {{DEAL\_REF}} — deed recorded**

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Hi {{CP\_FIRST\_NAME}},

The borrower conveyed the property to us on {{CONVEYANCE\_DATE}}. We now own it outright, and we're finishing the rehab and taking it to market.

### Recorded

Special Warranty Deed in Lieu of Foreclosure — Instrument No.

{{DEED\_INSTRUMENT\_NO}}, recorded {{DEED\_RECORDING\_DATE}}, {{COUNTY}} County.

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**Your position continues.** The Deed of Trust lien did not merge into our ownership, so your Collateral Assignment stays in place and in first position. Your return continues to accrue at {{CP\_RATE}}%, and you're paid in full from the sale proceeds ahead of us.

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## What happens now

We're {{PLAN}}. I'll keep you posted as it moves, and you'll hear from me the same week if anything material changes.

Call any time.

{{SENDER\_NAME}}

Lazy Dog Capital LLC

214-740-4989

**Tokens:** {{LETTER\_DATE}} · {{CP\_PAYEE\_NAME}} · {{CP\_FIRST\_NAME}} · {{CP\_ADDRESS}} · {{DEAL\_REF}} · {{CONVEYANCE\_DATE}} · {{DEED\_INSTRUMENT\_NO}} · {{DEED\_RECORDING\_DATE}} · {{COUNTY}} · **\*\*Your position continues.\*\*** The Deed of Trust lien did not merge into our ownership, so your Collateral Assignment stays in place and in first position. Your return continues to accrue at {{CP\_RATE}}%, and you're paid in full from the sale proceeds ahead of us. · {{PLAN}} · {{SENDER\_NAME}}

## NOTES

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- **The consent is not optional.** Section 5(b) of the Collateral Assignment requires it. Accepting a deed without it is a breach of your agreement with the partner.
- **There is no payout option.** Per Section 5 of the Capital Partner Agreement, a partner's capital is repaid from sale proceeds and they have no right to demand repayment earlier. A deed in lieu does not change that — it is a faster route to selling the property, not an exit for the partner.
- **The non-merger language in Section 6 of the Collateral Assignment is what makes this work** — the partner's security survives Lazy Dog taking title.
- **Lazy Dog may still choose to pay a partner out early** if it wants to. That is Lazy Dog's option, never the partner's demand.
- **A partner who won't consent is a HARD STOP** on the Acceptance Checklist. Foreclose instead.